

25NNCV06506 25NNCV06506

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Case Name: Edgar Mnatsakanyan vs. Farmers Insurance Exchange

Case No.: 25NNCV06506

Motion: Motion to Compel Non-Party Jose Montiel's Deposition

Moving Party: Defendant Farmers Insurance Exchange

Responding Party: None

Tentative Ruling: Deny

BACKGROUND

This action arises from the alleged breach of an insurance agreement between Plaintiff Edgar Mnatsakanyan ("Plaintiff") and Defendant Farmers Insurance Exchange ("Defendant").

On May 13, 2026, non-party witness Jose Montiel ("Montiel") was personally served with a Deposition Subpoena for Personal Appearance and Production of Documents and an Amended Notice of Taking Videotaped Deposition, which noticed the taking of his deposition for June 11, 2026. (Marshall Decl. ¶¶ 5–8.)

On June 10, 2026, after Defendant agreed to pay Montiel his hourly rate for his appearance at the deposition, Montiel informed Defendant that he would not appear at his noticed deposition unless he received payment of \$1,000.00 per hour with a two-hour minimum, which Defendant declined to pay. (Marshall Decl. ¶¶ 4, 9.) Defendant also advised Montiel that he was still under subpoena and then proceeded with Montiel's deposition the next day, as noticed. (Id. ¶ 9.) Montiel failed to appear at this noticed deposition. (Id. ¶¶ 10–11.)

Defendant now moves to compel Montiel's deposition.

No opposition was filed.

MOVING PARTY POSITION

Defendant asks for an order compelling Montiel to appear for deposition, as Defendant properly served its deposition notice, and as Montiel failed to timely object and appear at the noticed deposition on June 11, 2026.

Defendant also seeks sanctions in the amount of \$2,065.00 against Montiel.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal Standard

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc. § 2020.010.) A deposition subpoena may command: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. (Code Civ. Proc. § 2020.020.)

Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies. (Code Civ. Proc. § 2020.220, subd. (c).) A deponent who disobeys a deposition subpoena may be punished for contempt without the necessity of a prior order of the court directing compliance by the witness. (Code Civ. Proc. § 2020.240.)

A "written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, Rule 3.1346.)

II. Discussion

As a threshold matter, the Court finds that Defendant failed to properly serve Montiel with notice of this motion under Rule 3.1346. Initially, the Court notes that the declaration of service filed with Defendant's motion stated under penalty of perjury that Montiel had been personally served with written notice and all moving papers in support of the motion on August 4, 2026. (Declaration of Service, 8/4/26.) However, the Court also notes that Defendant subsequently filed a proof of substituted

service on August 19, 2026, which included a declaration of diligence that described three unsuccessful attempts to personally serve Montiel on August 12, 13, and 18, as the basis for effectuating substitute service on Montiel on August 18, 2026, by leaving these papers with a doe occupant of his residence. (Proof of Substituted Service, 8/19/26.) Accordingly, as the Court disregards the initial declaration of service's apparent falsehood of personal service on Montiel, and as the subsequent proof of substituted service establishes that Montiel was never personally served with notice, the Court finds that Defendant failed to properly effectuate service on Montiel under Rule 3.1346.

Thus, the motion is denied without prejudice.

RULING

Defendant Farmers Insurance Exchange's Motion to Compel Non-Party Jose Montiel's Deposition is DENIED without prejudice.